CHAMBERS OF JUDGE BAZELON

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United States Court of Appeals
For the
District of Columbia Circuit

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Joseph W. Stewart
CLERK

BRIEF AND JOINT APPENDIX FOR APPELLANT

United States Court of Appeals

FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 15487

232

WILLIAM P. ROGERS, APPELLANT

v.

CHENG FU SHENG & LIN FU MEI, APPELLEES

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

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United States Court of Appea
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No. 15487

QUESTIONS PRESENTED

In the opinion of the appellant, the following question is presented:

1. Are appellees—deportable aliens who resided in Formosa and came to the United States from Formosa and who owe allegiance to the Chinese Nationalist Government—deportable to Formosa?

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FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 15487

WILLIAM P. ROGERS, APPELLANT

v.

CHENG FU SHENG & LIN FU MEI, APPELLEES

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

BRIEF AND JOINT APPENDIX FOR APPELLANT

JURISDICTIONAL STATEMENT

This is an appeal from a final order of the United States District Court for the District of Columbia granting plaintiff-appellee's motion for summary judgment. This Court has jurisdiction of this appeal under 18 U.S.C. § 3731 (1952).

STATEMENT OF THE CASE[1]

Appellees were born in China, joined the Nationalist Chinese Air Force at the end of World War II, and went to Formosa with the Nationalist Forces in 1948 and 1949 when the Chinese mainland fell under communist control. Both were members of separate groups of Chinese Nationalist Air Force officers which were admitted to this country for eleven weeks of pilot training in 1952 and 1953. When their groups returned as scheduled to Formosa, appellees deserted and remained here. They were ordered deported to Formosa in 1953 (J.A. 28).

[1] Some of the facts related below are taken from a prior appeal involving the same appellees, *Sheng and Mei* v. *Barber*, 269 F. 2d 497 (9th Cir. 1959).

Deportation was withheld pending final action of their applications for adjustment of their status pursuant to Section 6 of the Refugee Relief Act, 67 Stat. 403 (1953), as amended, 50 U.S.C. App. § 1971d (Supp. V 1958).

The Immigration Service denied relief on the theory that appellees could return to Formosa, the country of their last residence, without fear of persecution on account of their political opinions. Appellees challenged this decision in the United States District Court for the Northern District of California, Southern Division, without success. *Sheng* v. *Barber*, 144 F. Supp. 913 (N.D. Cal. 1956). On appeal, however, the Ninth Circuit Court of Appeals reversed, and held that appellees were entitled to be considered for Section 6 relief. (269 F. 2d 497 (9th Cir. 1959).) Congress, however, refused to approve the granting of permanent residence to appellees, thus resulting in the final denial of relief under the Refugee Relief Act.[2]

In the suit below, filed in the District Court for the District of Columbia to review the orders of deportation, appellees contended that they could not be deported to Formosa for the reason that Formosa is not a "country" to which they may be deported within the meaning of the term "country" used in Section 243(a) of the Immigration and Nationality Act, 66 Stat. 212, 8 U.S.C. § 1253(a) (1952) (J.A. 21, 23). Cross motions for summary judgment were filed, and the parties stipulated that in the 1952 Japanese Peace Treaty, Japan renounced all interest in Formosa, and that no subsequent agreement thereafter entered into purported to transfer the sovereignty of Formosa to China (J.A. 26).

The District Court granted summary judgment for appellees, ruling that they could not be deported to Formosa, apparently for the following two reasons: (1) Formosa is not a "country" within the meaning of Section 243 of the Immigration and Nationality Act, which requires that deportation be to a country, rather than a place or territory; and (2) Formosa is not regarded by the United States Department of State as part of China, and therefore, although appellees are deportable to

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[2] See Congressional Record, September 11, 1959, p. 17586 and H. Res. 384, Report No. 1176, 86th Cong., 1st Sess.

China, they are not deportable to Formosa. This appeal, taken by the Government, followed.

STATEMENT OF POINTS

1. The District Court erred in holding that appellees are deportable only to a "country".

2. The District Court erred in holding that Formosa is not a "country".

STATUTES INVOLVED

Title 8 United States Code, § 1253 (a) and (b) provides:

> *Countries to which aliens shall be deported—(a) Acceptance by designated country; deportation upon non-acceptance by country.*
>
> The deportation of an alien in the United States provided for in this chapter, or any other Act or treaty, shall be directed by the Attorney General to a country promptly designated by the alien if that country is willing to accept him into its territory, unless the Attorney General, in his discretion, concludes that deportation to such country would be prejudicial to the interests of the United States. No alien shall be permitted to make more than one such designation, nor shall any alien designate, as the place to which he wishes to be deported, any foreign territory contiguous to the United States or any island adjacent thereto or adjacent to the United States unless such alien is a native, citizen, subject, or national or, had a residence in such designated foreign contiguous territory or adjacent island. If the government of the country designated by the alien fails finally to advise the Attorney General within three months following original inquiry whether that government will or will not accept such alien into its territory, such designation may thereafter be disregarded. Thereupon deportation of such alien shall be directed to any country of which such alien is a subject national, or citizen if such country is willing to accept him into its territory. If the government of such country fails finally to advise the Attorney General or the alien within

three months following the date of original inquiry, or within such other period as the Attorney General shall deem reasonable under the circumstances in a particular case, whether that government will or will not accept such alien into its territory, then such deportation shall be directed by the Attorney General within his discretion and without necessarily giving any priority or preference because of their order as herein set forth either—

(1) to the country from which such alien last entered the United States;

(2) to the country in which is located the foreign port at which such alien embarked for the United States or for foreign contiguous territory;

(3) to the country in which he was born;

(4) to the country in which the place of his birth is situated at the time he is ordered deported;

(5) to any country in which he resided prior to entering the country from which he entered the United States;

(6) to the country which had sovereignty over the birthplace of the alien at the time of his birth; or

(7) if deportation to any of the foregoing places or countries is impracticable, inadvisable, or impossible, then to any country which is willing to accept such alien into its territory.

(b) *Deportation during war.*

If the United States is at war and the deportation, in accordance with the provisions of subsection (a) of this section, of any alien who is deportable under any law of the United States shall be found by the Attorney General to be impracticable, inadvisable, inconvenient, or impossible because of enemy occupation of the country from which such alien came or wherein is located the foreign port at which he embarked for the United States or because of reasons connected with the war, such alien may, in the discretion of the Attorney General, be deported as follows:

(1) if such alien is a citizen or subject of a country whose recognized government is in exile, to the country

in which is located that government in exile if that country will permit him to enter its territory; or

(2) if such alien is a citizen or subject of a country whose recognized government is not in exile, then to a country or any political or territorial subdivision thereof which is proximate to the country of which the alien is a citizen or subject, or, with the consent of the country of which the alien is a citizen or subject, to any other country.

Title 8, United States Code § 1227(a) provides in pertinent part:

Immediate deportation of aliens excluded from admission of entering in violation of law—(a) Maintenance expenses.

Any alien (other than an alien crewman) arriving in the United States who is excluded under this chapter, shall be immediately deported to the country whence he came, in accommodations of the same class in which he arrived, on the vessel or aircraft bringing him, unless the Attorney General, in an individual case, in his discretion, concludes that immediate deportation is not practicable or proper.

* * * * *

ARGUMENT

Introduction

To enforce the various legislative restrictions on the flow of immigrants and foreign visitors to the United States, expulsion and exclusion of aliens is provided for in the immigration laws. Expulsion, commonly referred to as deportation, applies to the alien who is living in this country, but who has no right to remain. Exclusion pertains to those aliens who, although they may or may not physically be in the territory of the United States, are deemed by statute never to have been admitted. See *Leng May Ma* v. *Barber*, 357 U.S. 185 (1958). It is obvious that without provision for exclusion and expulsion the immigration laws could be openly flaunted.

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Expulsion and exclusion are thus instrumentalities by which violations of the immigration laws are remedied. The general scheme looks towards restoration of the *status quo ante* in so far as possible. See *Delany* v. *Moraitis*, 136 F. 2d 129, 131 (4th Cir. 1943); *United States* v. *Murff*, 253 F. 2d 941, 943 (2d Cir. 1958). Hence, the exclusion provision requires the alien to be returned to "the country whence he came". 8 U.S.C. § 1227(a) (1952); 66 Stat. 201.

Expulsion, on the other hand, is either to the country designated by the alien, or to the country of his nationality or citizenship, or to the country from which he came, or to the country of his birth, or to the country in which he resided prior to his entry, or to the country having sovereignty over his birthplace, or to any country willing to accept him. 8 U.S.C. § 1253(a) (1952); 66 Stat. 212. Nine alternative places to which an alien may be deported are carefully spelled out in this section. Quite plainly, the legislative drafters intended to leave no loopholes that would enable a deportable alien to frustrate expulsion on the ground that the statute provided no place to which he could be deported. The decision of the District Court enables appellees, aliens who came here from Formosa and who admittedly are here illegally, to do precisely that. The court below, without any legislative history to support its conclusions, ruled that appellees may not be deported to Formosa solely because the court construed the statute to permit deportation only to countries, and viewed the unsettled international status of Formosa as requiring the conclusion that Formosa is not a "country."

I

Appellees may be deported to Formosa

If we are able to demonstrate that Formosa is a country, within the meaning of that word as used in the 1952 Immigration Act, then the judgment of the District Court must be reversed. Or, assuming Formosa is held not to be a country, the judgment below must nevertheless be reversed if we can show that deportation need not be to a "country", but may be to other international subdivisions or entities.

A. *Formosa is a "country," within the meaning of Section 243(a) of the Immigration and Nationality Act of 1952*

The court below in its opinion devotes much language and discussion to the question of whether or not Formosa is part of China (J.A. 29, 33). In so doing, it misses the point. The issue is not whether Formosa is a part of China, but whether Formosa is a country, within the meaning of that term as used in the 1952 Immigration Act. To say that it is not a country is to construct a new and technical definition, one for which we are unable to discover any precedent anywhere, and with the result that two residents of Formosa who came here from Formosa, and who have always owed allegiance to the Government in control of Formosa, and who have no right to be here, may not be returned to Formosa. Although deportation statutes "should be generously construed. . . . this does not require [the court] to adopt a ridiculous interpretation favoring the alien at all events." *Khan* v. *Barber*, 253 F. 2d 547, 550 (9th Cir. 1958); *Cf. Jay* v. *Boyd*, 351 U.S. 345, 346 (1956).

We know of no decisions supporting the reasoning or conclusions of the court below. On the contrary, the courts have consistently refused to narrowly define the term "country".[3]

A recent illustration, directly in point in this case, is *United States* v. *Shaughnessy*, 218 F. 316 (2d Cir. 1954). Here the alien contended that he could not be deported to Communist China for the reason that Communist China was not a "country", since the United States did not recognize its government and therefore could not communicate with it. The alien argued that deportation to China should "mean deportation to Formosa or other territories under the control of the Republic of China" (at 318). The court rejected this argument as follows (at 319) (Harlan, J.):

> "We cannot agree that the word 'country' in § 243 must be so limited. While it is true that parts of the

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[3] Confronted with constant changes in both internationl boundries and the structure of foreign governments, the courts have liberally construed the term "country" so as to effectuate the purpose of the legislation in which the term country is used. *E.g., United States* v. *McCandless*, 61 F. 2d 366, 369 (3d Cir. 1932); *United States* v. *Karnuth*, 63 F. Supp. 727 (W.D.N.Y. 1945).

> statute contemplate communication with other countries, that is a far cry from saying that if communication is impossible, the other nation is not to be regarded as a 'country'. Such an interpretation would be an unnecessary departure from the ordinary meaning of the term. Indeed the reference in subdivision (7) of § 243(a) to 'any of the foregoing *places* or countries', clearly indicates that 'country' is not necessarily to be given the limited meaning claimed by the appellant, and we think this is certainly so as to subdivision (3)(4),(5), and (7). . . ."

In its decision the court affirmed the order of deportation to Communist China, but ". . . taking judicial notice of the hazardous conditions in that area of the world . . . [the court was] constrained to give the appellant another opportunity to cooperate . . . in bringing about his deportation to Formosa or any other territory under the control of the Chinese Nationalist Government." The alien had refused to select Formosa as the country to which he was to be deported, and the court, in its discretion, gave him another opportunity to do so.

This decision is in open conflict with the judgment below. Under Judge Holtzoff's view, appellees are deportable to Communist China, even though they resided in Formosa when they came to the United States and never owed allegiance to the government of Communist China. And even if they wanted to designate Formosa as the country to be deported to, pursuant to the option giving an alien the opportunity to designate a country to be deported [4] to, they could not designate Formosa, since Formosa is not a country. The Second Circuit necessarily regarded Formosa as a country, as in fact did the alien in that case. In sum the court below ruled that a Formosan who came here from Formosa could not be deported to Formosa, even if he wanted to be deported to Formosa, but may be deported only to Communist China. Surely Congress never

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[4] 8 U.S.C. § 1253a (1952); 66 Stat. 212 provides in pertinent part: "The deportation of an alien . . . shall be directed by the Attorney General to a *country* promptly designated by the alien if that *country* is willing to accept him into its territory . . . ." [Emphasis added.]

intended such incongruity. Although this ruling may be helpful to these aliens, it might well cause harsh consequences in future cases.

Another illustration of a case in which the court refused to narrowly construe the term "country", and one in which the facts were far more compelling from the alien's point of view than the instant one, is *Delany* v. *Moraitis,* 136 F. 2d 129 (4th Cir. 1943). In that case the alien was ordered deported to the Greek Government in exile in England, and contended on appeal that he could be deported only to the territory of Greece. The court affirmed the order of deportation and ruled as follows:

> ". . . The question presented by the appeal, therefore, is whether under the statute, the petitioner must be allowed to remain in this country, where he has no right to remain under our laws, or whether the statute will be complied with if he be returned to the political dominion and control of the country from which he came. We think that the latter is the case, . . .
>
> "It is true, of course, that the term 'country' as used in the statute must be construed, ordinarily, to refer to the territory from which the alien came. Mensevich v. Tod, 264 U.S. 134, 136, 44 S. Ct. 282, 68 L. Ed. 591. But a man's 'country' is more than the territory in which its people live. The term is used generally to indicate the state, the organization of social life which exercises sovereign power in behalf of the people. United States v. The Recorder, 27 Fed. Cas. page 718, 721, No. 16, 129. Ordinarily the state exercises sovereignty only within the territory occupied by its people; but a different situation is presented when the territory is overrun by its enemies and its government is in exile in the territory of a friendly nation exercising power in international matters in behalf of its nationals. In such case, the government in exile has taken over the only exercise of sovereign power left to the people of the country and is the only agency representing the country with which a foreign government can deal.

". . . It appears in this case that the government of the United States recognizes the Greek government functioning in England as the government of Greece and deals with it as such. In the matter of deporting an alien who has come to this country from Greece, the government must deal with the Greek government in England; and when, under agreement with that government, it arranges to return the alien into its power, it is not unreasonable to treat such delivery as a deportation to the 'country' whence he came in accordance with the statutory requirement.

* * * * *

"The purpose of the deportation statute with which we are dealing is to remove from this country an alien who is here contrary to our laws, and place him under the jurisdiction of the political power to which he owes allegiance. If the word 'country' as used in the statute be construed to include the government in exile of a country whose territory has been overrun by the common enemy, the purpose of the statute can be carried out and the alien placed under the jurisdiction of the country to which he owes allegiance and which is charged with his protection. If it be construed as limited to the territory of the nation, which has been thus overrun, the purpose of the statute will be frustrated in cases of this sort; and it will result either that we must suffer an alien who has come from such a country to remain at large in our county contrary to our laws or must support him in prison until such time as he can be returned to the territory now in possession of the enemy. We do not think that any such absurd result could have been within the contemplation of Congress in the passage of the Act; and it is well settled that statutes should be construed, if possible, so as to effectuate the purpose intended and avoid absurd consequences."

Under the holding of this case, appellees are unquestionably deportable to Formosa: first, the United States recognizes the Government on Formosa as the legitimate government of

China, and, second, that is the political power to which appellees owe allegiance. There is, in fact, much more reason to hold appellees deportable to Formosa since appellees came from Formosa and resided there prior to their coming to the United States. Moreover, that government has defacto sovereignty or control over the island of Formosa. None of these factors were present in *Delany* v. *Moriatis, supra.* The alien there had never lived in England, did not come from England, and the Greek Government had no sovereignty over English land.

The Supreme Court emphasized in *Burnet* v. *Chicago Portrait Co.*, 285 U.S. 1, 5(1932) that reference must be made to the purpose of the particular legislation in defining the term "country":

> "The word 'country', in the expression 'foreign country', is ambiguous. It may be taken to mean foreign territory or a foreign government. In the sense of territory, it may embrace all the territory subject to a foreign sovereign power. When referring more particularly to a foreign government, it may describe a foreign State in the international sense, that is, one that has the status of an international person with the rights and responsibilities under international law of a member of the family of nations; or it may mean a foreign government which has authority over a particular area or subject matter, although not an international person but only a component part, or a political subdivision, of the large international unit. The term 'foreign country' is not a technical or artificial one, and the sense in which it is used in a statute must be determined by reference to the purpose of the particular legislation."

The Court thus followed its usual practice of looking to the intent of Congress in order to determine the correct meaning of the word "country" [5] See also *Faber* v. *United States*, 221

[5] Subsequent to publication of Judge Holtzoff's opinion in the instant case (177 F. Supp. 281, D.C.D.C.), Judge Matthews, in written opinion, applied the *Burnett* doctrine of the Supreme Court; specifically rejected the ruling of Judge Holtzoff; and, held that aliens who last entered the United States from Hong Kong, and were thereafter found deportable, may be deported to Hong Kong, as a country from which such aliens last entered

U.S. 649 (1911); *Stairs* v. *Peaslee*, 18 How. (59 U.S.) 521 (1856); see also *Delany* v. *Moriatis*, *supra*, at 131; *M/V Nonsuco* v. *Comm. of Internal Revenue*, 234 F. 2d 583 (4th Cir. 1956); *Campbell, et al.* v. *Barney*, 4 Fed. Case 1157 (D.C.S.-D.N.Y. 1864).

Section 101 of the 1952 Immigration Act (8 U.S.C. § 1101) contains many definitions of the terms used in that Act. The word "country" however is not defined. It must therefore be given its ordinary and usual meaning, bearing in mind the context in which it is used and the purpose of the deportation provision.

WEBSTER'S NEW INTERNATIONAL DICTIONARY, UNABRIDGED (2d ed. 1944) defines country as follows:

> "1. A region or tract of land; a district; as, the north country.
> 2. The region characterized and limited by some special feature as of scenery, dialect; as the Lake Country.
> 3. The territory of a nation whether independent or not that is distinct as to name and the character, language, institutions, or historical memories of its people.
> 4. The land of a person's birth or adoption to which he owes his allegiance; fatherland.
> 5. The people of a state or district; the nation.
> 6. Rural regions, as opposed to a city or town."

BLACK, LAW DICTIONARY (4th ed. 1951) describes "country" as follows:

> "The portion of the earth's surface occupied by an independent nation or people, or the inhabitants of such territory.
>
> "In its primary meaning 'country' signifies 'place'; and, in a larger sense, the territory or dominions occupied by a community; or even waste and unpeopled

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the United States under 8 U.S.C. § 1253(a)(1). In arriving at her conclusion, Judge Matthews reasoned thusly, "The adoption of that rationale [*Burnett*] in the instant case would meet the requirement that the sense in which language is used in a statute must be determined by reference to the purpose of the particular legislation. Moreover, such adoption would tend to achieve and not to defeat the aims of the 1952 . . . Act." *Ying et al.*, v. *Rogers*, — F. Supp. — (D.C.D.C.; C.A. No. 2927-59, decided February 10, 1960). See Joint Appendix, *infra*.

> sections or regions of the earth. But its metaphorical meaning is no less definite and well understood; and in common parlance, in historical and geographical writings, in diplomacy, legislation treaties, and international codes, the word is employed to denote the population, the nation, the state, or the government, having possession and dominion over a territory."

Formosa has fixed geographic boundaries and a government having possession and dominion over its territory. The United States regards it, and it is treated, as an international person. Plainly, it meets the concise definition of "country" found in Morris, DICEY'S CONFLICT OF LAWS (7th ed. 1958) 30: " 'Country' means the whole of a territory subject under one sovereignty to one body of law". That the government of Formosa is sovereign over its territory is undisputable, and, we think, crucial, for sovereignty is the touchstone of all international law. Taylor, INTERNATIONAL PUBLIC LAW, § 117 (1901). The fact that its international status may be unsettled because no final treaties have been signed does not in any way detract from its sovereignty or make it any less a country. Surely it could not be contended that there is no such country as The Federal Republic of Germany because a final peace treaty has not been entered into. And it is certainly illogical to permit deportation of an alien to Communist China,[6] a government the United States does not recognize, but not to Formosa, whose government we do recognize.

If "Formosa" is not a country within the meaning of Section 243(a) of the 1952 Immigration Act then, presumably, it is not a country for purposes of the various other sections of the same Act. This would produce many results that are no less than absurd. For example, under Section 101(a)(15)(H) aliens of distinguished merit and ability are permitted to visit the United States temporarily if they have no intention of abandoning their residence in a "foreign country." If Formosa is not a "country," then no alien from Formosa could be admitted to the United States under the provisions of this Act.

A second example of the incongruous results that must follow if Formosa is not regarded as a country, is that the At-

[6] Plainly, appellees are citizens and nationals of the government in control of Formosa. *United States* v. *Murff*, *supra*.

torney General could not establish an Immigration Service Office in Formosa, even though Section 103(a) of the Act authorizes him to establish such offices in "foreign countries".

A third illustration: Section 231(c) authorizes the Attorney General, through Immigration Officers, to record information regarding every resident person leaving the United States by way of Canada or Mexico for permanent residence in a foreign country. One whose destination is Formosa would be excepted from the operation of this section if Formosa is not regarded as a country.

A more glaring example of the absurd consequences that would follow if Formosa were not regarded as a country is that persons illegally attempting to enter the United States from Formosa, and who otherwise would be excluded under Section 237(a) of the Act could not be excluded, since Section 237(a) provides that such an alien "shall be immediately deported to the country whence he came." This would mean that Formosans who have illegally sought entry into the United States could not be deported. But see *Shung* v. *Murff*, 176 F. Supp. 253 (S.D.N.Y. 1959).

II

Appellees are deportable to Formosa regardless of whether Formosa is a country

The District Court ruled that appellees may not be deported to Formosa because, in its opinion, the statute authorizes deportation only to "a country and not a particular location" (J.A. 29). Although the court stated that Formosa could not be regarded as a "country", nowhere in its opinion does it characterize Formosa, other than to refer to it as a "territory" or "place." The lower court, however, conceded that under the earlier immigration laws it would have been proper to deport appellees to Formosa. The court referred to Section 20 of the Act of February 5, 1917 (39 Stat. 874, 890), which provided that deportation of aliens "be to the country whence they came or to the *foreign port* at which such aliens embarked for the United States . . ." The lower court said:

> "Were these provisions in existence in the present statute, there would be no doubt whatever that the

> deportation of the plaintiffs to Formosa would be valid. For some reason which does not seem to appear in the legislative history, this provision was not included in the 1952 Act, and thereby was repealed by implication. No doubt that Congress must have had some good reason for abrogating the power of the Government to deport an alien to a specified port by requiring deportation only to a designated country".

We agree that the legislative history fails to disclose any reason for so limiting this deportation provision. We believe, however, that the present statute contains at least the substance of the prior Act, and does authorize deportation to Formosa (the place, or country, from which appellees came to the United States). Aside from the fact that repeals by implication are not to be indulged in lightly, the present statute states in language that could not be clearer that an alien may be deported "to the country in which is located the foreign port at which such alien embarked for the United States or for foreign contiguous territory".[7] We see no reason whatever for construing this Section more narrowly than the earlier section referred to by Judge Holtzoff. If anything, the statute actually broadens the scope of places to which aliens may be deported. It permits deportation not only to the specific foreign port from which the alien embarked to the United States, but also to the country in which is located the foreign port. This interpretation is wholly consistant with the legislative history of the Internal Security Act of 1950, subsequent to which the present provision was enacted. The legislative history discloses Congress' concern with the "undeportables" and its intention to *broaden,* not to narrow, the places to which an alien may be deported. S. Rep. No. 1515, Report of the Committee of the Judiciary (1950), pp. 637–8.

We need not go beyond Section 243 of the Act to demonstrate that appellees are deportable to Formosa, for in that Section it is provided that the Attorney General shall direct deportation to certain countries or " . . . (7) if deportation to any of the foregoing *places or countries* is impracticable, in-

[7] 8 U.S.C. § 1253(a)(2) (1952).

advisable, or impossible, then to any country which is willing to accept such alien into its territory" [Emphasis added].

The "foregoing places or countries" refers to the first six alternatives listed in this Section and *all* use only the term country. The use of the term "place" in Subsection 7 would be redundant if Congress intended deportation be made only to a *country*. It necessarily follows that deportation may be to a "country" or a "place." Surely Formosa is a "place." Compare *Shing* v. *Murff*, 168 F. Supp. 381 (S.D.N.Y. 1958) holding that an alien may be deported to the British Colony of Hong Kong.

In support of this conclusion, we again quote from the opinion of Justice (then Judge) Harlan in *United States* v. *Shaughnessy, supra*, 218 F. 2d at 319 (here the alien contended that he could be deported only to Formosa and not to Communist China):

> "We cannot agree that the word 'country' in § 243 must be so limited. While it is true that parts of the statute contemplate communication with other countries, that is a far cry from saying that if communication is impossible, the other nation is not to be regarded as a 'country'. Such an interpretation would be an unnecessary departure from the ordinary meaning of the term. Indeed the reference in subdivision (7) of § 243(a) to 'any of the foregoing *places* or countries', clearly indicates that 'country' is not necessarily to be given the limited meaning claimed by the appellant, and we think this is certainly so as to subdivision (3), (4), (5), and (7)."

And Judge Learned Hand, in *United States* v. *Murff, supra*, 264 F. 2d at 928, wrote:

> "As the relator was born in China, he is a 'subject national' or a 'citizen' of either the Nationalist Government of China, or the de facto Communist Government . . . ."

Section 243(a) states that "deportation of such alien shall be directed to any country of which such alien is a subject, na-

tional, or citizen if such country is willing to accept him into its territory."

As we have shown, to interpret the term "country" as excluding Formosa is to construe the statute in complete disregard of the plain meaning and purpose of the immigration laws. Not only does it make it impossible to return these aliens to Formosa, from where they came, but it would make it impossible to deport any Formosan who entered this country illegally. By parity of reason, an alien who came from Trinidad could not be deported there. The decision of the court below stands alone, completely out of step with a long line of federal cases uniformly holding that the term country should be reasonably construed by reference to the sense in which it is used and the purpose of the legislation.

CONCLUSION

Wherefore, it is respectfully submitted that the judgment of the court below be reversed, and the case remanded to the District Court with direction to enter summary judgment for appellant.

OLIVER GASCH,
United States Attorney,
CARL W. BELCHER,
LOUIS M. KAPLAN,
Assistant United States Attorneys.

JOINT APPENDIX

JOINT APPENDIX

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RELEVANT DOCKET ENTRIES

September 17	Complaint, Appearance, Filed.
September 24	Motion of defendant for summary judgment; P & As in support of and in opposition to pltfs. motion for preliminary injunction Exhibits (5), Filed.
September 24	Motion of pltff. for summary judgment; P & As; c/s September 24, 1959, Filed.
October 6	Opinion (Motion of deft. for summary judgment is denied, motion of pltfs. for summary judgment is granted) Holtzoff, J.
October 13	Order granting motion of pltf. for summary judgment and denying motion of deft. for summary judgment (n), Holtzoff, J.
November 16	Notice of appeal by defts. from order October 13, 1959, copy to Wasserman. (No fee, Govt.), Filed.

United States District Court for the District of Columbia

Civil Action No. 2580–59

CHENG FU SHENG, 313 SCOTT STREET, SAN FRANCISCO, CALIFORNIA AND LIN FU MEI, 145 FELL STREET, SAN FRANCISCO, CALIFORNIA, PLAINTIFFS

v.

WILLIAM P. ROGERS, ATTORNEY GENERAL OF THE UNITED STATES, DEFENDANT

COMPLAINT

(Declaratory Judgment Action—Review of Order of Deportation)

Plaintiffs, by their attorneys, respectfully allege:

COUNT I

1. This is an action for declaratory judgment under the Declaratory Judgment Act (28 U.S.C. 2201) and for review

under the Administrative Procedure Act (5 U.S.C. 1001, et seq.).

2. Defendant is the Attorney General of the United States and is charged with the statutory duty to determine, after appropriate hearings, whether aliens are to be deported from the United States, the places to which aliens shall be deported, and whether they may be granted stays of deportation.

3. Plaintiff, Cheng Fu Sheng, is a native and citizen of China who entered the United States on June 9, 1952, as a bona-fide non-immigrant to receive military training with the United States Air Force.

4. Plaintiff remained in the United States following the completion of his military training.

5. On or about December 2, 1953, defendant issued a warrant ordering plaintiff's deportation upon the ground that plaintiff had failed to maintain his non-immigrant status in the United States.

6. Defendant thereafter ordered plaintiff to be deported to Formosa.

7. Defendant has withheld the execution of the aforesaid warrant of deportation pending final determination of an application filed by the plaintiff for adjustment of his status to that of a permanent resident of the United States, pursuant to the provisions of Section 6 of the Refugee Relief Act [50 U.S.C. App. 1971(d)].

8. The said application was denied finally on or about September 15, 1959.

9. The warrant which orders plaintiff's deportation to Formosa is void and contrary to law in that Formosa is not a "country" within the meaning of Section 243(a) of the Immigration and Nationality Act [8 U.S.C. 1253(a)] to which plaintiff may be deported.

10. Defendant has threatened to deport plaintiff, and unless restrained will effect plaintiff's deportation before the action herein can be heard.

COUNT II

11. Plaintiff re-alleges the allegations contained in Paragraphs 1 through 8.

12. Following the issuance of the warrant directing plaintiff's deportation to Formosa, plaintiff applied to the defendant to withhold such deportation, pursuant to the provisions of Section 243(h) of the Immigration and Nationality Act [8 U.S.C. 1253(h)], and established during the course of the administrative proceeding on said application that:

(a) At the time of his entry in the United States, plaintiff was an officer in the Chinese Nationalist Air Force;

(b) During the course of his military training in the United States, plaintiff publicly criticized the Chinese Nationalist Government as a dictatorship.

(c) Plaintiff's critical statements regarding the Chinese Nationalist Government were thereafter reported to his superior officers in Formosa.

(d) The former Governor of Formosa, Dr. K. C. Wu, who had served as Governor of Formosa from December 21, 1949, to April 16, 1953, has described in proceedings before the Immigration and Naturalization Service the political methods of the Chinese Nationalist Government in Formosa, namely that it is a "police state," which resorts to mass arrests of political opponents by secret police and inflicts brutal treatment upon such opponents without trial, and had established upon the basis of his personal knowledge that critics of the Chinese Nationalist Government would be subject to physical persecution.

13. No contrary evidence whatsoever was introduced during the administrative proceedings to rebut plaintiff's claim that he would be subject to physical persecution were he to be deported to Formosa.

14. Notwithstanding the aforesaid record, defendant's special inquiry officer found that the evidence did not support a finding that the plaintiff would be subject to physical persecution in Formosa.

15. Upon the sole basis of the finding and recommendation of the aforesaid special inquiry officer, defendant acting through his Regional Commissioner of the Immigration and

Naturalization Service for the Southwest Region, order that plaintiff's application for stay of deportation be denied.

16. The denial of plaintiff's application for withholding his deportation to Formosa is not supported by any evidence, substantial or otherwise.

17. The evidence submitted by plaintiff in support of his claim that he will be subject to physical persecution if deported to Formosa has established that plaintiff has a reasonable and substantial basis for fearing persecution by the Chinese Nationalist authorities in Formosa on account of his political opinions.

18. That defendant's denial of plaintiff's application for withholding of his deportation to Formosa is arbitrary, capricious, and contrary to law.

19. Defendant has threatened to deport plaintiff, and unless restrained will effect plaintiff's deportation before the action herein can be heard.

COUNT III

20. Plaintiff, Lin Fu Mei, re-alleges the allegations contained in Paragraph 1 through 10 in Count I, except to allege that he entered the United States on or about February 12, 1953, and that the warrant directing his deportation to Formosa was issued on or about April 26, 1956.

COUNT IV

21. Plaintiff, Lin Fu Mei, re-alleges the allegations contained in Paragraphs 11 through 19 in Count II.

WHEREFORE, plaintiffs pray for a judgment:

(a) Declaring that the warrant of deportation which directs plaintiffs to be deported to Formosa is contrary to law and is void;

(b) Declaring that the denial of plaintiffs' applications for withholding of their deportation to Formosa upon the ground that they would be subject to physical persecution, if so deported, is arbitrary, capricious, an abuse of the discretion reposed in the defendant, and are therefore void;

(c) Remanding the cause herein for a proper exercise of discretion by the defendant; and

(d) Restraining the defendant from deporting plaintiffs pending the outcome of this litigation; and

(e) For such other and further relief as may be appropriate.

[S] JACK WASSERMAN
[S] DAVID CARLINER,
Attorneys for Plaintiffs,
902 Warner Building, Washington 4, D.C.

WASSERMAN & CARLINER, FALLON AND HARGREAVES,
Of Counsel.

United States District Court for the District of Columbia

Civil Action No. 2580–59

CHENG FU SHENG AND LIN FU MEI, PLAINTIFFS

v.

WILLIAM P. ROGERS, ATTORNEY GENERAL OF THE UNITED STATES, DEFENDANT

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT

Plaintiffs, by counsel, move for summary judgment upon Counts I and III of the Complaint filed herein, it being stipulated by the parties that as to these counts there is no genuine issue of material fact.

[S] JACK WASSERMAN,
[S] DAVID CARLINER,
Attorneys for Plaintiffs,
902 Warner Building, Washington 4, D.C.

Stipulation agreed to and notice of motion waived:
Assistant United States Attorney,
Attorney for the Defendant.

United States District Court for the District of Columbia

Civil Action No. 2580–59

CHENG FU SHENG AND LIN FU MEI, PLAINTIFFS

v.

WILLIAM P. ROGERS, ATTORNEY GENERAL OF THE UNITED STATES, DEFENDANT

DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

Comes now the defendant by his attorney, the United States Attorney for the District of Columbia, and respectfully moves the Court to grant summary judgment in his favor on the ground that the certified records of the Immigration and Naturalization Service concerning plaintiffs, and the certified copy of a letter of Ely Maurer, State Department, attached hereto and made a part hereof, show that there is no genuine issue of material fact herein and that defendant is entitled to judgment as a matter of law.

[S] Oliver Gasch,
OLIVER GASCH,
United States Attorney,
[S] Edward P. Troxell,
EDWARD P. TROXELL,
Principal Assistant United States Attorney,
[S] John F. Doyle,
JOHN F. DOYLE,
Assistant United States Attorney,
[S] Ellen Lee Park,
ELLEN LEE PARK,
Assistant United States Attorney.

United States District Court for the District of Columbia

Civil Action No. 2580–59

CHENG FU SHENG AND LIN FU MEI, PLAINTIFFS

v.

WILLIAM P. ROGERS, ATTORNEY GENERAL OF THE UNITED STATES, DEFENDANT

STIPULATION

It is hereby stipulated and agreed by and between counsel for the parties hereto that:

(1) the subpoena issued to L. Paul Winings is hereby withdrawn;

(2) if L. Paul Winings were called as a witness he would testify that Interim Decision 212 of November 7, 1950, House Report 91, 82d Congress, 1st Session (1951) has not to his knowledge been overruled by administrative decisions of the Immigration Service insofar as the Displaced Persons Act of 1948 is concerned;

(3) it is the purpose of defendant to effect the deportation of plaintiffs to Formosa and this fact has been communicated to them;

(4) the Government of the Republic of China has agreed to accept plaintiffs into its territory;

(5) the subpoena issued to Ely Maurer is withdrawn;

(6) In Article 2 of the Japanese Peace Treaty, which entered into force April 28, 1952, Japan renounced all "right, title and claim" to Formosa. Neither this agreement nor any other agreement thereafter has purported to transfer the sovereignty of Fomosa to China.

[S] Ellen Lee Park,
ELLEN LEE PARK,
Assistant United States Attorney,
Attorney for Defendant.
DAVID CARLINER,
Attorney for Plaintiffs.

Dated:.....

United States District Court for the District of Columbia

Civil Action No. 2580–59

CHENG FU SHENG, ET AL., PLAINTIFFS

v.

WILLIAM P. ROGERS, ATTORNEY GENERAL OF THE UNITED STATES, DEFENDANT

ORDER

This case having come before the Court on cross motions for summary judgment, and it appearing that there are no material issues of fact involved herein and that plaintiffs are entitled to judgment as a matter of law, it is by the Court, this 13th day of October, 1959.

Ordered, That plaintiffs' motion for summary judgment be and it hereby is granted; and it is

Further Ordered, That defendant's motion for summary judgment be and it hereby is denied.

[S] Holtzoff, J.,
Judge.

Certificate of Service

I hereby certify that service of the foregoing proposed Order submitted by defendant as an alternative to that submitted by plaintiffs has been made upon plaintiffs by mailing a copy thereof to their attorney, David Carliner, Esq., Wasserman and Carliner, Warner Bldg., Washington, D.C., this 12th day of October, 1959.

[S] Ellen Lee Park,
ELLEN LEE PARK,
Assistant United States Attorney.

United States District Court for the District of Columbia

Civil Action No. 2580–59

CHENG FU SHENG AND LIN FU MEI, PLAINTIFFS

v.

WILLIAM P. ROGERS, ATTORNEY GENERAL OF THE UNITED STATES, DEFENDANT

OPINION

Jack Wasserman and David Carliner, both of Washington, D.C., for the plaintiffs.

Oliver Gasch, United States Attorney; and Ellen Lee Park, Assistant United States Attorney, of Washington, D.C., for the defendant.

The principal question presented for decision in this case is whether an alien who is deportable to China may be deported to Formosa. This is an action against the Attorney General for a declaratory judgment, which would adjudicate that the plaintiffs, who are natives and citizens of China and whose deportation has been ordered, may not be deported to Formosa. The matter comes before this Court on cross-motions for summary judgment. There are no material issues of fact and only questions of law are involved.

The plaintiffs are natives and citizens of China, who entered the United States in 1952 to receive military training with the United States Air Force. They completed their studies but failed to depart from this country. Deportation proceedings were thereupon brought against them by the Immigration and Naturalization Service of the Department of Justice, and eventuated in warrants directing the deportation of the plaintiffs "pursuant to law". It has been stipulated that the Government intends to execute the warrants by deporting them to Formosa, in view of the fact that deportation to the mainland of China is impossible due to its occupation by the Communist regime. The plaintiffs thereupon instituted this action against the Attorney General for a declaratory judgment adjudicating that their deportation to Formosa would be contrary to law.

The places to which an alien may be deported are expressly and specifically defined by statute. The provisions now in ef-

fect are contained in the Act of June 27, 1952, and are found in Section 1253 of Title 8 of the U.S. Code. This enactment enumerates eight possibilities as places of deportation. Each possibility, however, is expressly stated to be a *country*. Among them is the country from which the alien last entered the United States; the country in which is located the foreign port at which he embarked for the United States; the country in which he was born; the country in which his place of birth is situated when deportation is ordered; any country in which he resided prior to entering the country from which he entered the United States; or the country which had sovereignty over his birthplace at the time of his birth. It should be emphasized, however, that in each instance the place to which deportation may be ordered is a *country* and not a particular location. In this respect the 1952 statute is radically different from the earlier law, which permitted deportation to be had to a particular port, such as the foreign port at which the alien embarked for the United States. Thus, Section 20 of the Act of February 5, 1917,[1] expressly provided that the deportation of aliens "be to the country whence they came or to the *foreign port*[2] at which such aliens embarked for the United States; . . ." Were this provision in existence in the present statute, there would be no doubt whatever that the deportation of the plaintiffs to Formosa would be valid. For some reason which does not seem to appear in the legislative history, this provision was not included in the 1952 Act, and thereby was repealed by implication. No doubt the Congress must have had some good reason for abrogating the power of the Government to deport an alien to a specified port and requiring deportation only to a designated country.

Since the plaintiffs are natives and citizens of China, their deportation may properly be effected to China. The question then arises whether Formosa is part of China. If it is, they may lawfully be deported to Formosa.

It is fundamental that such questions as whether a foreign country or a foreign government should be formally recognized; whether a particular nation has sovereignty over a specified

[1] 39 Stat. 874, 890.

[2] Italics supplied.

area; and what are the boundaries of a foreign country, are problems that are not to be solved by the courts, but are political matters that are to be decided by the executive and legislative departments of the Government. On such topics the President and the Secretary of State speak for the United States, and the courts are obligated to follow their pronouncements.

Thus, in the leading case of *Jones* v. *United States,* 137 U.S. 202, 212, Mr. Justice Gray wrote as follows:

> "Who is the sovereign, *de jure* or *de facto,* of a territory is not a judicial, but a political question, the determination of which by the legislative and executive departments of any government conclusively binds the judges, as well as all other officers, citizens and subjects of that government. This principle has always been upheld by this court, and has been affirmed under a great variety of circumstances."

The following authorities among the legion that might be cited are to the same effect:

Foster v. *Neilson,* 2 Pet. 253, 307, 309.
Williams v. *Suffolk Ins. Co.,* 13 Pet. 415, 420.
Oetjen v. *Central Leather Co.,* 246 U.S. 297, 302.
National Union Fire Ins. Co. v. *Republic of China,* 254 F. 2d 177.
Latvian State Cargo & Passenger SS Line v. *Clark,* 80 F. Supp. 683.
Oppenheim, International Law, 7th Ed. Sec. 357a.
I *Hackworth, Digest of International Law,* 165.

It is necessary, therefore, to ascertain and be guided by the attitude of the Department of State on the question whether Formosa is to be regarded as a part of China.

The attitude of the State Department is stated in a formal communication from Ely Maurer, Assistant Legal Adviser for Far Eastern Affairs of the Department of State, dated June 2, 1959, and addressed to Mr. Robert J. Asman, an Assistant United States Attorney. This statement was submitted by Government counsel as representing the views of the political

department of the Government on this subject. Pertinent portions of this statement read as follows:

> "In response to your telephone inquiry of this date, you are informed that the United States recognizes the Government of the Republic of China as the legal Government of China. The provisional capital of the Republic of China has been at Taipei, Taiwan (Formosa), since December 1949.
>
> "In 1895, under terms of the Treaty of Shimonoseki, China was compelled to cede Formosa to Japan. In the Cairo Conference, the United States, United Kingdom and China declared it was their 'purpose' that Manchuria, Formosa and the Pescadores 'shall be restored to the Republic of China.' Thereafter in August 1945 in the Potsdam Conference of the United States, United Kingdom and China declared 'that the terms of the Cairo Declaration shall be carried out.' This Potsdam Declaration was subsequently adhered to by the U.S.S.R. On September 2, 1945 the Japanese Government, in the instrument of surrender, accepted the provisions of the Declaration. The Supreme Allied Commander for the Allied Powers then issued Directive No. 1 under which the Japanese Imperial Headquarters issued General Order No. 1 requiring Japanese commanders in Formosa to surrender to Generalissimo Chiang Kai-shek of the Republic of China. Since September 1945 the United States and the other Allied Powers have accepted the exercise of Chinese authority over the island. In Article 2 of the Japanese Peace Treaty, which entered into force April 28, 1952, Japan renounced all 'right, title and claim' to Formosa."

A Department of State Bulletin, Vol. XXXIX, No. 1017, dated December 22, 1958, which constitutes an official expression of the foreign policy of the United States, contains the following discussion of the problem in which we are interested (pp. 1005 and 1009):

> "Since the middle of the 17th century and up to 1895 Formosa was a part of the Chinese Empire. In 1895

under the Treaty of Shimonoseki China ceded Formosa to Japan. In the Cairo conference in November 1943 the United States, United Kingdom, and China declared it was their 'purpose' that Manchuria, Formosa, and the Pescadores 'shall be restored to the Republic of China'. Thereafter in August 1945 in the Potsdam conference the United States, United Kingdom, and China declared that 'the terms of the Cairo Declaration shall be carried out.' This Potsdam declaration was subsequently adhered to by the U.S.S.R. On September 2, 1945, the Japanese Government, in the instrument of surrender, accepted the provisions of the declaration. The Supreme Allied Commander for the Allied Powers then issued Directive No. 1 under which the Japanese Imperial Headquarters issued General Order No. 1 requiring Japanese commanders in Formosa to surrender to Generalissimo Chiang Kai-shek of the Republic of China. Since September 1945 the United States and the other Allied Powers have accepted the exercise of Chinese authority over the island. In article 2 of the Japanese Peace Treaty, which entered into force April 28, 1952, Japan renounced all 'right, title and claim' to Formosa. *Neither this agreement nor any other agreement thereafter has purported to transfer the sovereignty of Formosa to China.*" (Emphasis supplied.)

* * * * *

"In giving the historical background of Formosa it has been pointed out that at Cairo the Allies stated it was their purpose to restore Formosa to Chinese sovereignty and at the end of the war the Republic of China received the surrender of Japanese forces on Formosa. It has also been pointed out that under the Japanese Peace Treaty, Japan renounced all right, title, and claim to Formosa. However, *neither in that treaty nor in any other treaty has there been any definitive cession to China of Formosa. The situation is, then, one where the Allied Powers still have to come to some*

agreement or treaty with respect to the status of Formosa." (Emphasis supplied.)

From the foregoing official pronouncements of the Department of State, it appears that the United States recognizes the Government of the Republic of China as the legal government of China; that the provisional capital of the Republic of China has been at Taipei, Taiwan (Formosa) since December 1949; that the Government of the Republic of China exercises authority over the island; that the sovereignty of Formosa has not been transferred to China; and that Formosa is not a part of China as a country, at least not as yet, and not until and unless appropriate treaties are hereafter entered into. Formosa may be said to be a territory or an area occupied and administered by the Government of the Republic of China, but is not officially recognized as being a part of the Republic of China. Expressions of the State Department are drawn with care and circumspection to refrain from such recognition.

Whether such a territory may be regarded as a part of a country as that term is used in the Immigration laws, does not appear to have been decided. The existence of the question was noted by Mr. Justice Brandeis in *United States ex rel Mensevich* v. *Tod,* 264 U.S. 134, 137, but expressly left open.

The conclusion seems inescapable to this Court that since under existing law, deportation may be effected only to a specific country, in this instance China, and since Formosa is not regarded by the Department of State as part of China as a country, the plaintiffs may not be deported to Formosa. Manifestly, as has been shown heretofore in this matter the Court must be bound by the official attitude of the Department of State, which apparently has been studied very carefully and expressed in guarded phraseology. It is even conceivable that for the Court then to regard Formosa as part of China for any purpose and thus go beyond the expressions of the Department of State, might cause embarrassment or complications insofar as that Department is concerned.

It is urged by Government counsel that the word "country" should be given a broad meaning. Manifestly, a statute should not be construed literally, but should receive a reasonable and

sensible interpretation. On the other hand, the Courts should resist any temptation to read into a statute something that is not there, or place a tortured construction on an enacment with a view to effectuating what the Court may think the Congress would have done had the matter been called to its attention. To do so would be an encroachment on the legislative power. It is peculiarly so in this instance because in the 1952 revision, the Congress dropped the provision contained in the 1917 Act, which permitted deportation to a specific foreign port. It would seem that to adopt the construction urged by the Government would in effect reinsert that phrase back in the statute—something that the Congress has not done so far and that the Court may not do.

The decision of the Fourth Circuit in *Delany* v. *Moraitis,* 136 F. 2d 129, on which Government counsel, in part, rely, does not seem to help their position. That case held that a citizen of Greece, whose deportation had been ordered but who could not be deported to Greece because Greece had been overrun by Germany during the War, could be delivered into the custody of the Greek Government in exile in England. It must be observed that Judge Parker in his opinion based his decision very largely on war conditions then prevailing. The Congress later, in the 1952 revision, expressly limited the effect of the decision in the *Delany* case to deportation in time of war, 8 U.S.C. § 1253(b)(1). Consequently, the conclusion of the *Delany* case must be regarded as law only in time of war.

The Court is not unmindful of the fact that its conclusion leads to a temporary impasse and makes it impossible for the time being to effect the deportation of the plaintiffs, and possibly other citizens of China. This matter can, however, be easily solved, for the Congress can readily and promptly amend the statute and make the amendment retroactive, if it feels that deportation should be effected. This course need not involve undue delay. The Congress could possibly amend the statute by reinserting into the above-mentioned provision from the 1917 Act, or by providing that deportation may be effected to any territory or area provisionally occupied by the Government of the country to which deportation must be effected, or

in some other manner that would accomplish the same objective. Legislative action would be the orderly course. For the Court to construe the present Act as meaning something that it does not purport to mean, would be an invasion of legislative power.

Motion of defendant for summary judgment is denied.

Motion of plaintiffs for summary judgment is granted.

[S] ALEXANDER HOLTZOFF,
United States District Judge.

OCTOBER 6, 1959.

United States District Court for the District of Columbia

Civil Action No. 2927–59

PETER YING AND WONG CHAI LIANG, PLAINTIFFS

v.

WILLIAM P. ROGERS, ATTORNEY GENERAL OF THE UNITED STATES, DEFENDANT

OPINION

Jack Wasserman and David Carliner, both of Washington, D.C., for plaintiffs.

Oliver Gasch, United States Attorney, Edward P. Troxell, Principal Assistant United States Attorney, John F. Doyle, Assistant United States Attorney, and Robert J. Asman, Assistant United States Attorney, for defendant.

This is an action against the Attorney General for a declaratory judgment. The two plaintiffs are nationals and citizens of China who entered the United States as nonimmigrant crewmen, overstayed their authorized time, and were ordered deported. The findings of deportability are not challenged. The defendant has moved for summary judgment and plaintiffs also have so moved.

The warrants of deportation direct that plaintiffs be deported "pursuant to law" but plaintiffs contend that the warrants are void because they do not specify the country to which plaintiffs are to be deported. It is conceded that each plaintiff received formal notice that the "country to which his deportation has been directed" is "Hong Kong." However, plaintiffs assert that Hong Kong is not a country within the meaning of the Immigration and Nationality Act. These questions of law are the only issues involved.

The Act of June 27, 1952, 8 U.S.C.A. 1253, governs as to the countries to which aliens may be deported. Among these is the "country from which such alien last entered the United States."

The Act does not define the word "country". At the time plaintiffs entered the United States they came from Hong Kong, a British Crown Colony, where they had resided for years. The British Consulate General in San Francisco has advised that consent has been granted by the authorities in Hong Kong for the acceptance of plaintiffs as deportees.

In support of their claim that Hong Kong is not a country within the meaning of the Immigration and Nationality Act plaintiffs cite *Cheng Fu Sheng* v. *Rogers,* 177 F. Supp. 281, D.C.D.C. The plaintiffs in that case were natives and citizens of China, and in 1952 had entered the United States from Formosa for the purpose of receiving military training with the United States Air Force. They finished their studies but failed to leave. The question was whether they might be deported to Formosa, the government there being willing to receive them. The court pointed out that China ceded Formosa to Japan in 1895, that in the Japanese Peace Treaty effective 1952 Japan renounced all right, title and claim to Formosa, but that neither in that treaty nor in any other has there been any cession to China of Formosa although the United States recognizes the Government of the Republic of China (the Nationalist Government) as the legal government of China and that such government exercises authority over Formosa. Then the court concluded

> "* * * that since under existing law, deportation may be effected only to a specific country, in this instance China, and since Formosa is not regarded by the Department of State as part of China as a country, the plaintiffs may not be deported to Formosa."

This Court does not regard the ruling in Sheng as persuasive.

It is well settled that statutes should be construed, if possible, so as to effectuate the purpose intended and to avoid absurd consequences. *Delany* v. *Moraitis,* 4 Cir., 136 F. 2d 129, 131. Where language is susceptible of a construction which preserves the usefulness of a statute, the judicial duty rests upon the court to give expression to the intendment of the law. *Armstrong Co.* v. *Nu-Enamel Corp.,* 305 U.S. 315, 333. *United States* v. *American Trucking Association,* 310 U.S. 534, 543.

In the instant case the Government proposes to deport from this country the two alien plaintiffs who are here contrary to our laws and to place them where they were immediately preceding the time they entered the United States, that is, in Hong Kong. This proposal may be carried out if Hong Kong is a "country" under that provision of the Act declaring that deportation of an alien may be made to the "country from which such alien last entered the United States."

A definition of the word "country" was given by the Supreme Court in *Burnet* v. *Chicago Portrait Co.*, 285 U.S. 1 (1932), as follows:

> "The word 'country,' in the expression 'foreign country,' is ambiguous. It may be taken to mean foreign territory or a foreign government. In the sense of territory, it may embrace all the territory subject to a foreign sovereign power. When referring more particularly to a foreign government, it may describe a foreign State in the international sense, that is, one that has the status of an international person with the rights and responsibilities under international law of a member of the family of nations; or it may mean a foreign government which has authority over a particular area or subject-matter, although not an international person but only a component part, or a political subdivision, of the larger international unit. The term 'foreign country' is not a technical or artificial one, and the sense in which it is used in a statute must be determined by reference to the purpose of the particular legislation."

The *Burnet* case concerned the claim of a corporation to an income tax deduction under a law allowing as such deduction part of income taxes paid "to any foreign country." The question involved was whether New South Wales constituted a "foreign country" within the meaning of the applicable law. It was held that New South Wales did so constitute a foreign country. New South Wales then was and is a state of the Commonwealth of Australia. The rationale of the court in *Burnet* as to the meaning of the word "country" has significance here. The adoption of that rationale in the instant case would

meet the requirement that the sense in which language is used in a statute must be determined by reference to the purpose of the particular legislation. Moreover, such adoption would tend to achieve and not to defeat the aims of the 1952 Immigration and Nationality Act.

It is the view of this court that Hong Kong is a country within the meaning of the Immigration and Nationality Act of 1952 and that plaintiffs may be deported to Hong Kong.

The plaintiffs are not prejudiced by the fact that the warrants of deportation do not specify the place to which they are to be deported as it is clear to plaintiffs and the appropriate authorities that plaintiffs are to be deported to Hong Kong.

The motion of the defendant for summary judgment will be granted and the motion of plaintiffs for summary judgment will be denied.

BURNITA SHELTON MATTHEWS, *Judge.*

FEBRUARY 10, 1960.

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